

IN THE SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

Bench

Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

CRIMINAL MISC. APPLICATION NO. 1292 OF 2025

CRIMINAL REVIEW NO. NIL OF 2025 IN

CRIMINAL APPEALS NO. 229 & 230 OF 2021

(Review against the judgment dated 25.02.2025 passed by this Court in Crl. Appeals No. 229 & 230 of 2021)

Sher Afzal & another ... Petitioner (s)

Versus

The State & another ...Respondent (s)

For the Petitioner : Mr. Basharat Ullah Khan, ASC.
a/w Mr. Ansar Nawaz Mirza, ASC.

For the Respondent No.2 : Sheikh Ahsan-ud-Din, ASC.

For the State : Mirza Abid Majeed, APG, Pb.

Assistance : Mr. Muhammad Subhan Malik
(Judicial Law Clerk, SCP)

Date of Hearing: : 26.02.2026

JUDGMENT

Salahuddin Panhwar, J.– (Crl. Misc No. 1292 of 2025) For reasons set out in the application, the same is allowed. Office is directed to allot number to this Criminal Review Petition in Criminal Appeals No. 229 & 230 of 2021.

(Crl. Review No. NIL of 2025)

Through the instant review petition, the petitioners seek review of the judgment dated 25.02.2025 passed by this Court in Criminal Appeals Nos. 229 and 230 of 2021, whereby their appeals were dismissed and the conviction and sentence of death awarded by the Courts below were maintained.

2. Learned counsel for the petitioners advanced submissions falling broadly in two categories. First, he assailed the judgment

under review on factual grounds, including the alleged weakness of motive, minor inconsistencies in the ocular account and certain aspects of appreciation of evidence. Secondly, and principally, he invoked the doctrine commonly described as the principle of expectancy of life. It was contended that petitioner Muhammad Latif was arrested on 31.10.2007, whereas petitioner Sher Afzal was arrested on 10.09.2012, and that Muhammad Latif has by now undergone incarceration of approximately eighteen years. On such basis, it was urged that the sentence of death may be converted into imprisonment for life. Conversely, learned counsel for respondent No. 2 and the learned Additional Prosecutor General submitted that the judgment under review suffers from no error apparent on the face of the record. The offence was found to be premeditated and executed with extreme brutality. They relied on **Zafar Iqbal v The State (PLD 2015 SC 307)** and reiterated that expectancy of life is not a universal rule and this court declined the application of this rule, since there was cold-blooded premeditated murder of five persons. They maintained that the sentence awarded and maintained by this Court is fully justified in view of the gravity, manner and brutality of the offence, namely the murder of five members of one family.

3. We have heard learned counsel for the parties and have perused the record with their able assistance. At the very outset, it is necessary to restate the settled scope of review jurisdiction. Article 188 of the Constitution of the Islamic Republic of Pakistan, 1973, read with Part IV, Order XXVIII of the Supreme Court Rules, 2025, vests this Court with jurisdiction to review its judgment or order. However, such jurisdiction is not appellate in character. A review is not an appeal in disguise. It is not a forum for rehearing the case, reconstructing submissions already addressed, reappraising evidence, reweighing ocular testimony, or reconsidering factual controversies which stood concluded in the judgment under review. In criminal matters, review lies only where there is an error apparent on the face of the record, or where intervention is necessary for the ends of justice or to prevent abuse of the process of the Court. The error must be manifest, material and self-evident from the record itself. It cannot be one which is discovered only through elaborate argument, detailed scrutiny of evidence, or analytical reasoning of

the kind properly undertaken at the appellate stage. This position has consistently been recognised in, inter alia, ***Ghulam Sarwar and others v The State* (1979 SCMR 43)**, ***Yaqoob Khan and others v The State* (PLD 1996 SC 97)**, ***Ayyaz Baig alias Bau Chuhanwala v The State* (2002 SCMR 380)**, ***Naseer Ahmed v The State* (2006 SCMR 942)**, ***Khan v The State* (2008 SCMR 880)** and ***Sikandar Hayat and another v The State* (PLD 2020 SC 559)**.

4. Tested on this standard, the grounds urged with respect to motive, minor inconsistencies and appreciation of evidence are plainly outside the permissible scope of review. The judgment under review considered the evidence, accepted the prosecution case, and maintained the conviction and sentence after conscious appraisal of the material on record. The petitioners cannot invoke review jurisdiction to obtain a second factual evaluation. It is also settled that minor discrepancies or omissions, which do not go to the root of the prosecution case, do not by themselves demolish otherwise reliable testimony. Human recollection is not expected to reproduce events with mechanical precision. In ***Iftikhar Kiyani v The State* (2025 SCMR 1360)**, this Court reiterated that minor discrepancies, far from necessarily discrediting a witness, may in appropriate circumstances reflect the naturalness of human testimony. No ground has been made out on this score which may be characterised as an error apparent on the face of the record.

5. The principal contention, therefore, is the plea founded on the principle of expectancy of life. Since the argument concerns the quantum of sentence in a capital case, it deserves careful consideration, though within the narrow limits of review. The doctrine of expectancy of life in the capital sentencing jurisprudence of Pakistan has not developed as a free-standing plea for mercy. It is a constrained sentencing principle rooted in proportionality, legality, fairness and the statutory structure of section 302(b), PPC, which contemplates death or imprisonment for life as alternative punishments for qatl-i-amd liable to tazir. Section 302(b), PPC itself requires the Court to have regard to the facts and circumstances of the case. Thus, neither death nor life imprisonment can be treated as a mechanical consequence detached from the facts, the offender,

the delay, the nature of custody already suffered, and the gravity of the offence.

6. Earlier decisions of this Court were cautious in giving decisive weight to delay. This caution was not without reason. Delay in trials, appeals and execution had become a feature of the criminal justice system and, in some cases, could also be occasioned by tactical conduct of convicts. The restrictive trend was noticed in ***Muhammad Sharif v Muhammad Javed (PLD 1976 SC 452)*** and in the line of cases later surveyed in ***Hassan and others v The State and others (PLD 2013 SC 793)***. In ***Hassan***, this Court expressly noticed that the earlier general tendency to reduce death sentences on the ground of long death-cell detention had undergone a metamorphosis because of chronic delay and the risk of manoeuvred delay. The Court therefore rejected any unqualified proposition that delay simpliciter would justify commutation.

7. ***Hassan*** is important because it structured the doctrine into distinct categories. The Court first clarified that section 403, Cr.P.C. and the strict rule of *autrefois acquit* or *autrefois convict* are not directly attracted where no fresh trial or second prosecution is involved. The Court further explained that Article 13(a) of the Constitution, which embodies protection against prosecution and punishment for the same offence more than once, is not directly applicable where the question is merely one of propriety of sentence. The Court observed that in a case where a convict sentenced to death has undergone custody equal to or exceeding a full term of imprisonment for life during pendency of his legal remedy, the relevant principle is expectancy of life along with the peculiar facts and circumstances of the case, rather than direct applicability of Article 13(a). The judgment thus placed the doctrine in the domain of sentencing discretion, proportionality and natural justice.

8. The operative principles stated in ***Hassan*** may be restated for present purposes. First, where delay is occasioned in final disposition of a legal remedy pursued by a condemned prisoner and the undergone period of incarceration is less than a full term of imprisonment for life, the principle of expectancy of life for reduction of death to life stands abandoned. Secondly, where the State or

complainant seeks enhancement of a sentence of imprisonment for life to death after the convict has served the full life sentence, expectancy of life remains relevant against such enhancement, with the spirit of Article 13(a) being a factor along with others. Thirdly, where a convict sentenced to death undergoes custody equal to or more than a full term of imprisonment for life during pendency of his judicial remedy against conviction and sentence of death, expectancy of life may be considered with other factors for reducing death to imprisonment for life. The emphasis is therefore on the life-term threshold and on the presence of additional circumstances which justify the exercise of discretion.

9. **Hassan** also founded the doctrine upon broader constitutional and statutory values. Reference was made to Article 37(e) of the Constitution, which obliges the State to ensure inexpensive and expeditious justice, and to the legislative analogies contained in sections 497, 426 and 382-B, Cr.P.C., which provide relief where trial, appeal or detention is prolonged. The Court reasoned that where a condemned prisoner fails to obtain final judicial determination for so long that his custody stretches to a period equal to or exceeding a full term of imprisonment for life, the State, acting through its judicial organ, may acknowledge its failure to provide expeditious justice and may reduce the sentence. **Hassan** described the contrary result in memorable terms: execution after such long custody would not strictly be double punishment, but an unconscionably delayed punishment, delayed to such an extent that the punishment is aggravated beyond the contemplation of the relevant law itself.

10. The five-member judgment in **Dilawar Hussain v The State (2013 SCMR 1582)** is the pivotal authority on the application of this doctrine in review jurisdiction. The Court did not reopen the conviction, nor did it treat review as a rehearing of the criminal appeal. It confined its intervention to the quantum of sentence. The convict in that case had remained incarcerated for a period equivalent to imprisonment for life, including prolonged detention in the death cell. The Court observed that section 302(b), PPC provides only two sentences, namely death or imprisonment for life, and that where the convict has already undergone one of the two legal

sentences, the Court may exercise discretion in favour of the lesser penalty where extenuating circumstances exist. The Court held that it would be unjust to impose a double sentence in substance where the delay was not attributable to the convict and he had suffered the agonies of death-cell detention for a very long period.

11. ***Dilawar Hussain*** is therefore significant for two reasons. First, being a five-member judgment, it carries controlling precedential force over smaller Bench decisions. Secondly, it demonstrates that expectancy of life may be considered even in review jurisdiction, but only in a narrow and sentence-specific manner. The review Court does not sit in appeal over the conviction. It may, however, consider whether a material sentencing circumstance apparent from the record, or arising from undisputed supervening custody, was not considered and whether complete justice requires correction of the sentence. Such intervention is not founded on compassion alone. It rests on the statutory alternative in section 302(b), PPC, the principle of natural justice, the constitutional value of life under Article 9, dignity under Article 14, treatment in accordance with law under Article 4, and principled equality under Article 25.

12. Equally important is the subsequent five-member judgment in ***Khalid Iqbal v Mirza Khan (PLD 2015 SC 50)***. That decision qualifies, but does not overrule, ***Dilawar Hussain***. ***Khalid Iqbal*** expressly noticed the parameters laid down in ***Hassan*** and held that the doctrine is not available where delay is caused by the Executive in processing a mercy petition or executing the death sentence after judicial remedies have been exhausted, nor where the convict himself is demonstrably and significantly responsible for the delay in conclusion of his judicial remedies. The Court further clarified that it is misconceived to suggest that every condemned prisoner who has served a full-term during pendency of legal remedies cannot be awarded or maintained with a death sentence if other factors so warrant. ***Khalid Iqbal*** therefore prevents expectancy from hardening into an automatic rule.

13. The two five-member pronouncements in ***Dilawar Hussain*** and ***Khalid Iqbal*** must be read harmoniously. Therefore, the life-

term-equivalent custody, particularly where accompanied by prolonged death-cell detention and delay not attributable to the prisoner, may constitute a material sentencing circumstance capable of consideration even in review; however, delay or custody by itself is not an indefeasible right to commutation. The Court must examine whether the life-term threshold has been crossed; whether the prisoner was bona fide pursuing legal remedies; whether the delay is systemic or attributable to the Court or the Executive rather than to abuse of process; whether the offence carries aggravating features; whether additional mitigating circumstances exist; and whether execution, after what has already been suffered, would now be disproportionate or unconscionably aggravated.

14. The later decision in ***Sikandar Hayat and another v The State (PLD 2020 SC 559)*** applies this synthesis. The majority condoned extraordinary delay in review because the prisoners had not remained idle but had pursued legal remedies relating to juvenility and remission. It treated prolonged death-cell detention of more than twenty-five years, absence of previous enmity, sudden occurrence and parity with acquitted co-accused as cumulative mitigating factors. The dissenting opinion, however, states the limiting principle with equal force: review cannot be permitted to become appellate reconsideration, and delay occasioned by frivolous, false or oblique proceedings cannot validly be counted to claim expectancy of life. The crux of ***Sikandar Hayat*** is that bona fides of the legal pursuit by the prisoner are central to the doctrine.

15. More recently, in ***Ghulam Shabbir v The State (PLD 2024 SC 951)***, this Court converted death into life imprisonment where the prisoner had undergone more than thirty-four years of incarceration without remissions, including about twenty-four years in the death cell. The Court emphasised Articles 4 and 14 of the Constitution, the dignity of prisoners, humane treatment, death-cell conditions and systemic delay in judicial and executive processes. ***Ghulam Shabbir*** does not dilute ***Khalid Iqbal***. Rather, it represents the application of the doctrine in an extreme case where the custody period had far exceeded the life-term benchmark and the prisoner had, without fault, suffered an additional harshness inherent in long death-cell confinement. The case thus reinforces

the point that expectancy may be examined in review, but only within a narrow sentencing-review window.

16. The nature of the offence remains a vital component of the sentencing balance. Expectancy of life is not to be applied in abstraction from the crime. ***Haji Muhammad alias Jhoora v The State (PLD 2014 SC 322)*** is a clear illustration. There, the convict had sought conversion of death to life on the basis that he had served twelve years in prison. This Court declined the plea, noting that the accused had caused the death of an innocent person in a reckless manner by firing at vital parts of the body, had acted after preparation, had killed the husband of his ex-wife and had also abducted her. The offence was treated as heinous and devoid of mitigating circumstances. This authority is directly relevant to the present case because it demonstrates that a period substantially below the life-term threshold, when coupled with heinous and premeditated conduct, does not attract expectancy of life.

17. The converse is illustrated by ***Ahmad and another v Shafiq-ur-Rehman and another (2013 SCMR 583)***, where the High Court had reduced death to life and this Court declined enhancement. The reasons included the youth of the accused, who was about twenty years of age at the time of occurrence, the fact that he had fired at the bidding command of his parents, the immediate cause of occurrence remaining shrouded in mystery, the absence of personal involvement in the motive, and the fact that the accused had almost served out his sentence of imprisonment. ***Ahmad*** therefore confirms that expectancy or undergone custody operates meaningfully where it is accompanied by independent mitigating circumstances. It does not support a bare arithmetic plea of years spent in jail.

18. The enhancement cases also illuminate the doctrine. In ***Haji Muhammad Ilahi v Muhammad Altaf alias Tedi (2011 SCMR 513)***, this Court observed that enhancement to death is to be exercised sparingly, particularly where the matter depends on findings of fact, and that the Court should interfere only where failure to enhance would lead to serious miscarriage of justice. Likewise, in ***Iftikhar Ahmed Khan v Asghar Khan (2009 SCMR 502)*** and ***Haji Tahir Hussain v Sqlain (2008 SCMR 817)***, the

Court considered expectancy where a convict sentenced to life had already served out that sentence, or had been released, during pendency of enhancement proceedings. These cases belong principally to the second **Hassan** category, namely enhancement from life to death after the life sentence has been served. They are not directly applicable to a condemned prisoner seeking commutation in review before crossing the life-term threshold. They nevertheless support the broader principle that sentence is a matter of judicial discretion informed by finality, fairness, the passage of time and the legal sentence already undergone.

19. It is also necessary to clarify the relevance of section 367(5), Cr.P.C. **Hassan** explains that section 302(b), PPC provides two alternative sentences and does not declare death to be the normal sentence in every murder case. Section 367(5), Cr.P.C. requires the trial Court to state reasons where it imposes a punishment other than death for an offence punishable with death, but that provision does not convert death into an inevitable or presumptive sentence before appellate or revisional Courts. The real inquiry remains the facts and circumstances of the case. In review, however, the inquiry is narrower still. The Court is not selecting sentence afresh. It asks whether a material sentencing circumstance falling within the limited review jurisdiction has been shown.

20. It is worth mentioning that this doctrine must also be applied with particular caution where the offence involves terrorism, kidnapping for ransom, murder of minors, sectarian or public violence, multiple murders, extreme brutality, premeditated killing, or conduct intended to terrorise society. However, such offences are not wholly outside Article 188 or the constitutional guarantees of life, dignity and lawful treatment, for even a condemned prisoner remains a person before the law.

21. Under Section 57 of the Pakistan Penal Code, 1860 and Rule 140 of the Prison Rules, 1978, imprisonment for life for the purpose of calculating fractions of punishment is deemed to be **twenty-five years**. Therefore, the Principle of Expectancy of Life cannot be invoked on the basis of lesser periods of incarceration (any period below 25 years), nor can it be calculated on the basis of remissions or other concessions. The relevant period must be assessed strictly

in accordance with law and without the inclusion of remissions, since the convict on death sentence was ordinarily not entitled to remissions. Rule 140 of the Prison Rules 1978, which states that Imprisonment for life will mean twenty-five years rigorous imprisonment and every lifer prisoner shall undergo a minimum of fifteen years substantive imprisonment. It is pertinent to clarify that, the minimum condition of 15 years is for a "lifer", and as per Rule 198 (b), "Lifer" means a prisoner sentenced to imprisonment for life. The convicts seeking relief on the basis of life expectancy are prisoners on death row and do not qualify as "lififers" under the statute or the applicable Rules. A condemned prisoner stands, as it were, on one side of a river which the law has not yet permitted him to cross. Until that crossing takes place through a lawful conversion of the sentence of death into imprisonment for life, his legal status remains that of a prisoner under sentence of death, and nothing beyond. So long as he stands on that side of the river, he cannot claim the remissions which the law grants to a life convict, nor can this Court presume, in anticipation, the benefits which may possibly accrue to him upon crossing over. The law concerns itself with realities as they presently exist, not with possibilities which may or may not arise in future. Once the river is crossed and the sentence stands converted, the legal consequences attached to imprisonment for life may then follow in accordance with law. Yet, until such stage arrives, the express mandate of Section 57 of the Pakistan Penal Code, prescribing the benchmark of twenty-five years, cannot be modified by importing speculative remissions into a sentence which still remains one of death. Therefore, while applying the Principle of Expectancy of Life, the Court must examine the convict's present legal character, namely, that he still stands on the near side of the river, and not what he may eventually receive if he crosses to the other side. To assume remissions for a death row convict, who in law is presently disentitled to them, would be to replace statutory certainty with judicial conjecture.

22. Applying the above framework to the present case, the petitioners fail at the very threshold. Petitioner Muhammad Latif was arrested on 31.10.2007 and, according to learned counsel, has remained incarcerated for approximately eighteen years, whereas petitioner Sher Afzal was arrested on 10.09.2012 and has undergone a still lesser period. The custody relied upon by the

petitioners thus remains materially below the benchmark of a full term of imprisonment for life. Yet, even beyond the deficiency of the custody period, there lies a circumstance of considerable weight. This was no crime of sudden impulse, no violence committed in the heat of passion, nor an occurrence born of momentary provocation. The record, as concurrently appreciated by the Courts below and maintained in the judgment under review, discloses a premeditated and cold-blooded murder of five closely related persons in a single occurrence, rooted in a property dispute. The deceased were members of the petitioners' family; nevertheless, the accepted prosecution case reflects that the occurrence was executed with calculated design to wipe out an entire branch of the family and thereby extinguish their claim over the disputed property, hence this court rightly reached on decision, as this is a case of "rarest to rare". When the object of violence travels beyond personal animosity and assumes the character of eliminating lawful claimants for material gain, the offence acquires a degree of moral depravity of a far graver order. Such circumstances, at least prima facie, place the present case at a considerable distance from those categories where the doctrine of expectancy of life has been invoked in aid of sentence reduction.

23. We add that the present case does not require any extended inquiry into remissions. In the present case, however, even on the showing of the petitioners, the custody period remains below twenty-five years. The plea therefore fails irrespective of any debate regarding the availability, computation or assumed application of remissions to a death-row prisoner.

24. The plea of the petitioners also fails on the review standard. No material sentencing circumstance apparent on the face of the record has been shown to have been ignored in the judgment under review. The argument based on expectancy of life is not available on the present facts because the life-term threshold has not been crossed, because no additional compelling mitigation is present, and because the nature of the offence is among the most aggravated. To accept the plea in such circumstances would convert expectancy from a narrow equitable and constitutional sentencing discretion into an automatic discount based on time spent in custody, a result expressly disapproved by **Hassan** and **Khalid Iqbal**.

25. We are, therefore, of the considered view that no error apparent on the face of the record has been shown. The factual grounds urged by the petitioners are outside the scope of review. The plea of expectancy of life is not attracted either on the custody threshold or on the balancing of aggravating and mitigating circumstances. The present case does not fall within the narrow sentencing-review window recognised in ***Dilawar Hussain, Khalid Iqbal, Sikandar Hayat*** and ***Ghulam Shabbir***. Consequently, the review petition is dismissed.

26. Before parting with this judgment, we would appreciate the valuable research assistance provided by Mr. Qaisar Abbas, (Ex-Research Officer, SCP/Civil Judge).

Judge

Judge

Judge

Islamabad

26.02.2026

Muhammad Subhan Malik (JLC)/ -

Approved For Reporting